

Court No. - 29

Case :- WRIT - C No. - 31736 of 2021

Petitioner :- Smt. Deepti Agarwal

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Syed Fahim Ahmed

Counsel for Respondent :- C.S.C.,Pranjal Mehrotra

Hon'ble Pritinker Diwaker,J.

Hon'ble Ashutosh Srivastava,J.

Case of the petitioner is that electricity connection has not been given to the petitioner on the ground that 'no objection certificate' has not been given by her landlord with whom a litigation is pending in the competent civil court.

Learned counsel appearing on behalf of respondent-Power Corporation submits that as per rules, if 'no objection certificate' is not being given by any landlord, tenant has to submit an Indemnity Bond as provided in Clause 4.4 of the U P Electricity Supply Code 2005.

Learned counsel for the petitioner submits that the petitioner would submit the said indemnity bond as desired by the Power Corporation. However, the Corporation be directed to immediately grant electricity connection to the petitioner. He submits that other required formalities would also be completed by the petitioner.

In view of above, nothing survives for adjudication. In the eventuality of completing all the required formalities, including that of submitting an indemnity bond by the petitioner, it is expected from respondents to pass an appropriate order in accordance with law.

Petition is, accordingly, disposed of.

Order Date :- 20.12.2021

RKK/-Vandana